

10. **Rule applies to an illegitimate child.** — The doctrine of advancement has been applied to the case of even an *illegitimate son* (*b*); for it is said the principle is, that a father is under a moral duty to provide for his child, and as the obligation extends to the case of an illegitimate child, he is equally entitled to the benefit of the presumption (*c*). But the doctrine will not be applied to the illegitimate son of a legitimate child of the real purchaser, the person who paid the purchase-money, though such purchaser may have placed himself *loco parentis* to the illegitimate grandchild (*d*).

11. **Rule applies to daughters as well as sons.** — It has been said that the presumption of advancement is not so strong in favour of a *daughter* as of a *son*, because daughters are not generally provided for by a settlement of real estate (*e*); but the distinction has been contradicted by more than one decision, and does not now exist (*f*).

12. **Rule applies to a wife, and grandchild or nephew, towards whom the purchaser stands in loco parentis.** — Advancement will be presumed in the case of a *wife* (*g*), and this presumption may, as in that of a child, be rebutted by the special circumstances under which the transfer was made (*h*). But no presumption will arise in favour of a reputed wife, being the sister of a former wife, and therefore not legally married (*i*); and the presumption will be made where the purchase is taken in the name of a grandchild, where

(*b*) Beckford v. Beckford, Lofft, 490; Fearne's P. W. 327; and see Soar v. Foster, 4 K. & J. 160; Kilpin v. Kilpin, 1 My. & K. 520; Tucker v. Burrow, 2 H. & M. 525.

(*c*) See Fonb. Eq. Tr. 123, note (*i*), 4th ed.

(*d*) Tucker v. Burrow, 2 H. & M. 515.

(*e*) Gilb. Lex. Præ. 272.

(*f*) Lady Gorge's case, cited Cro. Car. 550, 2 Sw. 600; Jennings v. Selleck, 1 Vern. 467; and see Woodman v. Morrel, 2 Freem. 33; Clark v. Danvers, 1 Ch. Ca. 310.

(*g*) Kingdome v. Bridges, 2 Vern. 67; Christ's Hospital v. Budgin, id. 683; Back v. Andrews, id. 120; Glais-

ter v. Hewer, 8 Ves. 190, per Sir W. Grant; Rider v. Kidder, 10 Ves. 367, per Lord Eldon; Gilb. Lex. Præ. 272; Dummer v. Pitcher, 2 M. & K. 262; and see Lloyd v. Pughe, 14 L. R. Eq. 241; 8 L. R. Ch. App. 88.

(*h*) Marshal v. Crutwell, 20 L. R. Eq. 328; and M. R. further observed: "Now in all the cases in which a gift to the wife has been held to have been intended, the husband has retained the dominion over the fund in this sense, that the wife during the lifetime of the husband has had no power independently of him, and the husband has retained the power of revoking the gift." Ib. 330, *sed qu.*

(*i*) Soar v. Foster, 4 K. & J. 152.